

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 17-07

PORT ELIZABETH TERMINAL & WAREHOUSE CORP.

COMPLAINANT

v.

THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY

RESPONDENT

**JOINT STATUS REPORT SUBMITTED BY PORT ELIZABETH TERMINAL &
WAREHOUSE CORP. AND THE PORT AUTHORITY OF NEW YORK AND NEW
JERSEY**

Pursuant to Your Honor's April 17, 2018 Initial Decision Granting Motion to Partially Dismiss Complaint ("Initial Decision"), the parties have met and conferred submit this joint status report with a proposed schedule to address the remaining claim of Port Elizabeth Terminal & Warehouse Corp. ("PETW") for a cease and desist order for violation of 46 U.S.C. §§ 41106(2), 41104(8), and 41104(9):

As an initial matter, the parties do not agree on additional discovery. As such, the parties' respective positions regarding scheduling are as follows:

I. Complainant PETW's brief position with respect to scheduling:

- 1) PET&W to submit a First Amended Complaint within ____ days (30 suggested).
- 2) Complainant PET&W to file a motion to compel PANYNJ to provide the following discovery within ____ days (14 suggested):
 - a) The RFPs that went out with regard to building 1400 and the LaFarge group of buildings;
 - b) Sign in sheets conducted related to the inspections in conjunction with the RFPs for building 1400 as well as the LaFarge group of buildings;

- c) Responses to the RFPs regarding building 1400 as well as the LaFarge group of buildings;
- d) Lease agreement between the PANYNJ and Columbia Coastal for the property PET&W proposed to use as a state-of-the-art warehouse facility (CenterPoint proposal);
- e) Correspondence between the PANYNJ and PNCT regarding space leased to PET&W, provided to PNCT, and then subleased by the PANYNJ and PNCT to PET&W;
- f) Monthly reports regarding PANYNJ tenants in arrears from 2010 to present as testified to by the designated witness;
- g) Settlement Agreements between the PANYNJ and
 - (1) PNCT,
 - (2) FAPS,
 - (3) Maher,
 - (4) AWI/ASI,
 - (5) Other tenants from 2008 to present.
- h) A date for deposition(s) of a representative pursuant to Rule 30(b)(6) (deposition to be held within ____ days) with knowledge of:
 - (1) The disparity in treatment between PET&W and PNCT, Columbia Coastal, FAPS including the transportation factors the PANYNJ contends justifies the disparity including:
 - (a) Transportation factors justifying the PANYNJ decision to provide PNCT with property leased to PET&W;
 - (b) The failure to provide PET&W with an opportunity to negotiate for the space leased by PANYNJ to PNCT;
 - (c) Transportation factors justifying the PANYNJ decision to provide Columbia Coastal with property leased to it where PET&W proposed to build a warehouse (CenterPoint proposal);
 - (d) The failure to provide PET&W with an opportunity to negotiate for the space leased by PANYNJ to Columbia Coastal (where PET&W proposed to build a warehouse - CenterPoint proposal);
 - (e) The disparity in treatment between PET&W and FAPS and other tenants as it pertains to lease payment arrearages and the transportation factors the PANYNJ contends justifies the disparity including

- (f) Impact of rent arrearages on negotiations for lease extensions and/or new leases;
 - (g) Providing property formerly occupied by PET&W to FAPS.
 - i) Correspondence regarding transfer of property held by PET&W to PNCT including the arrangement regarding the properties subleased to PET&W by PNCT with the concurrence of PANYNJ. This to include correspondence regarding rent owed.
- 3) Discovery to end in ____ (75 suggested) days.
 - 4) Dispositive motions (if any) or Findings of Fact and Conclusions of Law to be Filed and Served in 90 days.
 - 5) Hearing on contested facts to be held _____.

**II. Respondent The Port Authority of New York and New Jersey's (the "Port Authority")
brief position with respect to additional discovery:**

The Initial Decision states "[o]n or before May 22, 2018, the parties shall ... **file a joint status report with a proposed schedule for resolving the remaining claim for a cease and desist order for violation of 46 U.S.C. §§ 41106(2), 41104(8), and 41104(9).** The parties should address whether additional discovery is required given this decision limiting the issues in the proceeding." (emphasis added).

First, the express language of the Initial Decision does not permit the May 22, 2018 joint status report to include a provision for the filing of an amended complaint of PETW's claims that were dismissed without prejudice. It is the Port Authority's position that PETW should be required to seek leave from the Court to file an amended complaint on their claims dismissed without prejudice separate and apart from this joint status report. Further, with respect to PETW's remaining claim for a cease and desist order, after approximately six (6) months of discovery, including multiple depositions from both sides, thousands of pages of documents

exchanged, as well as the exchange of expert reports from both sides, the Port Authority does not consent to further discovery in this matter.

The Port Authority of New York and New Jersey's (the "Port Authority") proposed Schedule for Dispositive Motions:

- Any motion for summary judgment shall be filed within 30 days after completion of the Court's decision to extend or deny further discovery in this matter; opposition shall be filed within 30 days of service of the motion; reply shall be filed within 15 days of service of the opposition.
- PETW files brief, proposed findings of fact. and appendix by August 17, 2018.
- The Port Authority files brief, proposed findings of fact, appendix, and responses to PETW's proposed findings of fact by September 17, 2018.
- PETW files reply brief and responses to the Port Authority's proposed findings of fact by October 2, 2018.

Dated: May 22, 2018

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Warehouse Corp.*

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